

(b) detained in consequence of the war as a prisoner, military or civil, in any enemy country; or

(c) interned in consequence of the war in an enemy or neutral country,

36 & 37 Vict.
c. 63.

has entered or shall enter into an indenture of apprenticeship in terms of the Law Agents (Scotland) Act, 1873 (hereinafter referred to as the Act of 1873), one half of the period of such employment, detention, or internment shall be reckoned as actual service under such indenture.

(2) Where any person has served or shall serve in any of His Majesty's forces in the present war, and after the termination of such service has entered or shall enter into an indenture in terms of the Act of 1873, one half of the period of such service shall be reckoned as actual service under such indenture.

(3) This Act shall not apply where the indenture is entered into more than one year, or, in the case of any of the persons specified in subsection (6) of section five of the Act of 1873, more than three years, after the termination of the war: Provided that, where any person continues to serve in any of His Majesty's forces after the termination of the war, the said periods of one year and three years respectively shall be reckoned from the termination of such service.

(4) This Act shall not authorise the reckoning as actual service under any indenture of any period exceeding three years, or, in the case of any of the persons specified in the said subsection (6) of section five, two years.

Short title.

2. This Act may be cited as the Law Agents Apprenticeship (War Service) (Scotland) Act, 1919, and this Act and the Law Agents Apprenticeship (War Service) (Scotland) Act, 1914, may be cited together as the Law Agents Apprenticeship (War Service) (Scotland) Acts, 1914 and 1919.

5 & 6 Geo. 5.
c. 20.

CHAPTER 25.

An Act to modify the requirements of the enactments relating to public notaries with respect to articulated clerks who have served in His Majesty's Forces or in other public service or have been prisoners of war or interned in connection with the present war. [22nd July 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Reckoning of
time of war
service as
service under
articles.

1. Notwithstanding anything in the enactments relating to public notaries, if any person has been engaged in war service and is bound by articles of clerkship, the period or the aggregate of the periods during which he has been so engaged shall, if

such person has in other respects complied with the said enactments, be reckoned for all purposes as if it had been time during which he had served pursuant to such articles as clerk to a public notary :

Provided that no such person shall be capable of being sworn, admitted or enrolled as a public notary unless, in addition to being so engaged, he has actually served pursuant to such articles for a term of two years as a clerk or apprentice to a public notary.

2. The Master of the Faculties may, where owing to circumstances arising out of or connected with the present war he sees fit so to do, exempt any person or persons from compliance with the enactments and rules for the time being in force with respect to the requirement of certificates or proofs as to the competency of any persons applying for admission or re-admission as public notaries, and any such exemption may be total or partial and may be granted subject to any such conditions as may be imposed.

Power to exempt from proof of competency.

3. In this Act :—

The expression “war service” means service in any of His Majesty’s forces, or in any other public service, and includes detention as a civil or military prisoner in any enemy country and internment in any enemy or neutral country, provided that such service, detention or internment is in consequence of or connected with the present war, and that the Master of the Faculties is satisfied as to the fact and length of such service, detention or internment and has approved the character of such public service ; and

Meaning of “war service” and “articles of clerkship.”

The expression “articles of clerkship” means a contract in writing or indenture of apprenticeship pursuant to the Public Notaries Act, 1801, as amended by the Public Notaries Act, 1843, to serve as a clerk or apprentice to a public notary where the articles are entered into at any time before or during the present war, or within one year after the termination thereof, or where the Master of the Faculties is satisfied in any particular case that a person has been retained in war service after the termination of the present war, within one year after the termination of such war service.

41 Geo. 3. c. 79.
6 & 7 Vict. c. 90.

4.—(1) This Act may be cited as the Public Notaries (Articled Clerks) Act, 1919 ; and the Public Notaries Act, 1801, the Public Notaries Act, 1833, and the Public Notaries Act, 1843, and this Act may be cited together as the Public Notaries Acts, 1801 to 1919.

Short title, citation and extent.
3 & 4 Will. 4. c. 70.

(2) This Act shall not extend to Scotland or Ireland.

CHAPTER 26.

An Act to amend the Law with respect to Bonds given by persons to whom administration is granted.

[22nd July 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendments
of law with
respect to
bonds given by
administration
20 & 21 Vict.
c. 77.

1.—(1) The bond required under section eighty-one of Court of Probate Act, 1857, to be given by a person to whom a grant of administration has been committed may, during any vacancy in the office of President of the Probate, Divorce and Admiralty division of the High Court, be given to a registrar of the principal probate registry.

(2) The powers of a district registrar under the said Act to require sureties to such a bond, and to reduce the amount of such a bond, and to limit the liability of a surety shall be exercisable in the case of a grant of administration from the principal probate registry by a registrar of that registry.

(3) An application for the assignment of such a bond to some person in order to enable him to sue on it may be made to a registrar of the principal probate registry on summons.

(4) For the purpose of carrying out the provisions hereinbefore contained, the sections of the said Act mentioned in the first column of the Schedule to this Act shall have effect, subject to the amendments therein specified in the second column of that schedule.

Short title.

2. This Act may be cited as the Grant of Administration (Bonds) Act, 1919.

SCHEDULE.

Section 1.

AMENDMENTS OF COURT OF PROBATE ACT, 1857.

Section.

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| 81 | After the words "judge of the Court of Probate" there shall be inserted the words "or in the case of a vacancy in that office to a registrar of the principal Probate Registry", and for the words "in the case of a grant from the district registry the district registrar" there shall be substituted the words "a registrar". |
| 82 | For the words "district registrar," wherever they occur, there shall be substituted the words "a registrar". |
| 83 | For the words "motion or petition in a summary way", there shall be substituted the word "summons", the words "order one of the registrars of the court to" shall be omitted, and after the words "judge of the court" there shall be inserted the words "or a registrar". |